

Defendant has established that Plaintiff failed to timely serve the mandatory initial disclosures within 60 days of the filing of Defendant's responsive pleading, as required by CCP 871.26(b) and failed to provide complete information or the required documents. Defendants filed their responsive pleading on May 22, 2025. Plaintiff's initial disclosures were due on July 21, 2025. Plaintiff served initial disclosures, along with a single document, on August 6, 2025. Plaintiff has not served any additional documents or disclosures. (Declaration of Lopez ¶¶ 2-8.)

Plaintiff has not established good cause for the failure to comply with CCP 871.26(b). Sanctions of \$1,500 are therefore mandatory pursuant to CCP 871.26(j)(1). The Motion is **GRANTED**. Sanctions of \$1,500 are payable within 15 business days of notice of entry of order.

KAMILLE VS. MAYERS MEMORIAL HOSPITAL DISTRICT, ET AL.

CASE NUMBER: 25CV-0207640

Tentative Ruling on Motion for Summary Judgment/Adjudication: Defendant Mayers Memorial Healthcare District moves for summary judgment, or in the alternative summary adjudication, as to each cause of action alleged in the Complaint, pursuant to CCP § 437c. Plaintiff opposes the Motion.

This is a disability discrimination employment action. Plaintiff's Complaint generally alleges as follows. Plaintiff has autism spectrum disorder. He worked as a Systems Administrator for Mayers in Fall River Mills. He complained about exposure to strong toxic fumes which would seep into his office, which lacked windows and adequate ventilation. The fumes made Plaintiff dizzy and nauseous, causing sensory overload that interfered with this ability to perform his job. Plaintiff requested reasonable accommodation for his disability and was retaliated against and constructively terminated.

The Complaint alleges 12 causes of action. Numbers 10 and 12 were dismissed by Plaintiff. Defendant's Motion suggests the causes of action can be categorized into three theories: 1) numbers 1-5 are disability related claims based on Plaintiff's autism in violation of FEHA; 2) numbers 6-9 allege forms of retaliation for reporting the adhesive odors; and 3) number 11 is for Mayers' vicarious liability for intentional infliction of emotional distress by Plaintiff's supervisor, the individually named Defendant Jeff Miles. Miles does not join in this Motion.

Objections to Evidence: Defendant's objections to evidence numbers 1-4 are overruled.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

1. Disability Discrimination in Violation of FEHA

To establish a *prima facie* case of disability discrimination, plaintiff must show 1) he suffers from a disability, 2) he is otherwise qualified to do the job with or without reasonable accommodation, and 3) he was subjected to an adverse employment action because of the disability. *Lopez v. La Casa de Las Madres* (2023) 89 Cal. App. 5th 365. Defendant argues Plaintiff cannot establish he was subjected to an adverse employment action because of his disability. Defendant also argues there is no causal nexus between Plaintiff’s disability and an adverse action.

There is no dispute that Plaintiff has autism and was subjected to chemical fumes in his office, which came from the maintenance department on the floor below. (AF 6-8) Plaintiff repeatedly complained to Miles that the fumes caused him headaches, nausea, dizziness and other physical symptoms. (AF 9) Plaintiff thereafter submitted his resignation, stating that he felt sick, full of anxiety and could not stop replaying the threat to write him up, and that it was not fair that he had complained about unsafe chemical odors only to be threatened with a write up. (AF64) The Court finds that there are triable issues of material fact regarding whether Plaintiff was subjected to the adverse employment action of constructive discharge. “In order to amount to a constructive discharge, adverse working conditions must be unusually “aggravated” or amount to a “continuous pattern” before the situation will be deemed intolerable.” *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.

It is undisputed that the chemical odors were not a one-time occurrence but rather a continuous pattern. (AF 8, 9, 13) The jury must determine whether the working conditions were unusually aggravated, such that the situation was intolerable, effectively forcing Plaintiff to quit. Summary adjudication is denied. The Court also finds that there are triable issues of material fact regarding the causal nexus between Plaintiff’s disability and the adverse action. For example, Plaintiff testified and Defendant does not dispute that Plaintiff’s supervisor Miles called him an idiot. (AF 5) Miles also raised his voice and threatened to write up the Plaintiff while Plaintiff was agitated due to his increased sensitivity to fumes and inconsistencies in his work location, which were both attributable to Plaintiff’s disability. (AF 23-33) Summary adjudication is **DENIED**.

2. Failure to Provide Reasonable Accommodation in Violation of FEHA

“To establish a failure to accommodate claim, [plaintiff] must show (1) she has a disability covered by FEHA; (2) she can perform the essential functions of the position; and (3) [defendant] failed reasonably to accommodate her disability. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 256–257.) A “reasonable accommodation” means a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.”

Brown v. Los Angeles Unified School Dist. (2021) 60 Cal.App.5th 1092, 1107.

Defendant argues they provided a reasonable accommodation. The Court finds there are triable issues of material fact as to whether the accommodation offered was reasonable. For example, it is undisputed that in response to Plaintiff's complaints, his supervisor responded that the options to combat the odors were to open windows, close doors, run fans, or have Plaintiff work at another location, and "there really isn't a short term solution." (AF 22) Whether Defendant's other proposed solutions – including working from another campus where an office may or may not be available, or a breakroom – were reasonable, are disputed fact questions for the jury. Summary adjudication is **DENIED**.

3. Failure to Engage in Interactive Process in Violation of FEHA

"Under section 12940, subdivision (n), it is separately actionable for an employer to fail "to engage in a timely, good faith, interactive process with the employee ... to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee ... with a known physical or mental disability or known medical condition." (§ 12940, subd. (n); see *Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.) "The "interactive process" required by the FEHA is an informal process with the employee or the employee's representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively.'" (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.) Both the employer and the employee are responsible for participating in the interactive process." *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 600.

Defendant argues Plaintiff cut off the interactive process by rejecting the accommodations offered. The Court finds there are triable issues of material fact with respect to whether the employer's offers of accommodation were reasonable and whether the employer engaged in the interactive process in good faith. For example, it is undisputed that in response to Plaintiff's complaints, his supervisor responded that the options to combat the odors were to open windows, close doors, run fans, or have Plaintiff work at another location, and "there really isn't a short-term solution." (AF 22) Summary adjudication is **DENIED**.

4. Retaliation in Violation of FEHA

"In order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a "protected activity," (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042. Defendant argues this cause of action fails because Plaintiff was not subjected to an adverse employment action based on his autism. Defendant refers to the arguments set forth above, regarding constructive discharge and causal nexus. The Court's analysis on those arguments applies here as well and is incorporated by reference. Summary adjudication is **DENIED**.

5. Failure to Prevent Discrimination/Retaliation in Violation of FEHA

Defendant argues that this claim is derivative of the first and fourth causes of action, and for the reasons discussed above, Plaintiff cannot show an adverse employment action or causal nexus. The Court's analysis on those arguments applies here as well and is incorporated by reference.

Summary adjudication is **DENIED**.

6, 7, 8, 9. Whistleblower Retaliation (Lab. Code 6310, 6311, 1102.5, 98.6, 232.5)

Defendant groups the whistleblower retaliation claims together, and argues that these causes of action require Plaintiff to show that he engaged in protected activity, was subjected to an adverse employment action, and a causal link between the two. *St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301. Defendant again argues that these causes of action fail because Plaintiff was not subjected to an adverse employment action and that there is no evidence it was because he complained about the odors. The Court's analysis on those arguments applies here as well and is incorporated by reference. Summary adjudication is **DENIED**.

10. Cause of Action Dismissed by Plaintiff

11. Intentional Infliction of Emotional Distress

Although direct common law liability is barred, a public entity may be held vicariously liable for IIED under Cal Gov Code § 815.2. *Lawson v. Superior Court* (2010) 180 Cal. App. 4th 1372, *Lugtu v. California Highway Patrol* (2001) 26 Cal. 4th 703. This statute provides that a public entity is liable for an injury proximately caused by an act or omission of an employee within the scope of their employment if the employee's conduct would have given rise to a cause of action against that employee individually. Cal Gov Code § 815.2; *Lugtu v. California Highway Patrol*, *supra*, 26 Cal. 4th 703.

Here, there are triable issues regarding Plaintiff's supervisor's actions considering the Plaintiff's disability. The jury must weigh the evidence regarding whether Miles's conduct, considering the totality of circumstances (e.g. Plaintiff's known increased sensitivity to fumes, need for "sameness," and physical and emotional symptoms) rose to the level of extreme and outrageous behavior. Summary adjudication is **DENIED**.

12. Cause of Action Dismissed by Plaintiff

Defendant's Motion for Summary Judgment, or in the alternative Summary Adjudication is **DENIED**. Plaintiff's proposed order will be executed.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion for Summary Judgment or Summary Adjudication: Plaintiff Christopher Laurence was employed as a union field mechanic at Defendant Holt of California's Redding location from January 9, 2024 through May 13, 2024. Plaintiff filed his PAGA Complaint on March 11, 2025 alleging 8 causes of action ("PAGA claims"). Plaintiff filed a separate individual Complaint on June 17, 2025, alleging the same 8 causes of action ("Individual Claims"). The actions were consolidated by Court Order on September 15, 2025.

Request for Judicial Notice. Defendant requests the court take judicial notice of the following:

1. Plaintiff's PAGA Notice filed with the LWDA 12/18/24
2. Plaintiff's PAGA Complaint filed in this Court 3/11/25